

[Ch. lxxxvii.] *West Hartlepool* [15 & 16 GEO..5.]
Corporation (Trolley Vehicles) Order Confirmation
Act, 1925.

A.D. 1925.

*West
Hartlepool
Corporation.*

(3) Trolley vehicles shall not be used by the Corporation in Church Close Friar Street Friar Terrace or Lumley Street except with the consent in writing of the Hartlepool Corporation but notwithstanding anything contained in this subsection trolley vehicles may be used in so much of the said roads as may reasonably be necessary for the purpose of turning vehicles at the junction of those roads with Route No. 1 authorised by the section of this Order of which the marginal note is "Power to use trolley vehicles" :

(4) Any question arising between the Corporation and the Hartlepool Corporation under the provisions of this section shall be referred to and determined by a single arbitrator to be appointed by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Costs of
Order.

11. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Order as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of money to be borrowed under the powers of this Order for that purpose.

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FOR

WILLIAM RICHARD CODLING, Esq., C.V.O., C.B.E., the King's Printer of
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CHAPTER lxxxviii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Irvine Burgh. A.D. 1925.
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[7th August 1925.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament : 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Irvine Burgh Order Confirmation Act 1925. Short title.

A.D. 1925.

SCHEDULE.

IRVINE BURGH.

Provisional Order to extend the powers of the provost magistrates and councillors of the royal burgh of Irvine under the Burial Grounds (Scotland) Acts to the whole of the burgh to make provision with regard to the common good of the burgh and for other purposes.

WHEREAS the provost magistrates and councillors of the royal burgh of Irvine (in this Order called "the Town Council") acting under the Irvine Burgh Act 1881 (in this Order referred to as "the Act of 1881") the Irvine Burgh Improvement Act 1896 (in this Order referred to as "the Act of 1896") the Irvine Burgh Order 1911 (in this Order referred to as "the Order of 1911") the Town Councils (Scotland) Acts 1900 to 1923 the Burgh Police (Scotland) Acts 1892 to 1911 the Public Health (Scotland) Acts 1897 to 1907 and the Roads and Bridges (Scotland) Act 1878 are the municipal police local and road authority within the burgh of Irvine :

And whereas prior to the commencement of the Act of 1881 the burgh of Irvine for municipal and police purposes was situated wholly in the parish of Irvine :

And whereas under the Representation of the People (Scotland) Act 1832 the burgh of Irvine was a burgh which contributed to send a Member to Parliament and the area of the burgh for parliamentary purposes included not only the municipal burgh of Irvine as existing at the commencement of that Act but also a considerable area in the parish of Dundonald :

And whereas by the Act of 1881 the municipal boundaries of the burgh of Irvine were extended to include the whole of the then parliamentary burgh and also certain additional areas in the parishes of Irvine and Dundonald and the burgh as extended and defined by the Act of 1881 is in this Order referred to as "the burgh" :

And whereas under the Representation of the People Act 1918 the area of the burgh for parliamentary purposes is now made co-extensive with the police boundaries of the burgh : A.D. 1925.
—

And whereas the Town Council are the local authority for the purposes of the Burial Grounds (Scotland) Act 1855 as amended by Section 69 of the Nuisances Removal (Scotland) Act 1856 (which Acts and any Acts amending the same are in this Order referred to as "the Burial Grounds Acts") within the parliamentary burgh of Irvine as defined by the Representation of the People (Scotland) Act 1832 :

And whereas it is expedient that the powers of the Town Council as the local authority for the purposes of the Burial Grounds Acts should be extended to the whole of the burgh :

And whereas in or about the year 1879 the Dundonald Parochial Board provided for their parish under the Burial Grounds Acts a cemetery situated at Ayr Road outside the burgh which cemetery was made available and has been made use of for amongst others the inhabitants of that part of the burgh which lies in the parish of Dundonald so far as accommodation had not been provided in Irvine Churchyard :

And whereas by section 37 of the Act of 1881 it was provided that the said parochial board may levy or continue to levy assessments within that part of the said parish which by that Act was included within the burgh for defraying the expense of the said cemetery as fully and effectually as if that Act had not been passed :

And whereas it is expedient that the Town Council should have the sole right of levying assessments within the burgh under and for the purposes of the Burial Grounds Acts and that the said provision contained in section 37 of the Act of 1881 should be repealed :

And whereas the Town Council have duly passed a resolution that a burial ground be provided under the Burial Grounds Acts for the area for which the Town Council are the local authority under those Acts have acquired ground for the formation of a burial ground and are proceeding to enclose and lay out a burial ground accordingly :

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— And whereas the Town Council are charged with the administration of the common good of the burgh (in this Order referred to as “the common good”) and by section 26 of the Act of 1881 it was provided that the common good and all rents profits and interests arising therefrom should be held by the Town Council for the exclusive behoof and benefit of that portion of the burgh comprised within the municipal boundaries of the burgh as the same existed prior to the commencement of the Act of 1881 :

And whereas it is expedient that the benefit of the common good should be extended to the whole of the burgh and that the Act of 1881 should be amended accordingly :

And whereas it is expedient that certain provisions of the Act of 1881 should be repealed and that in the matters to which they relate the burgh should be subject to the general law :

And whereas it is expedient that such further provisions should be enacted as are in this Order contained :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

PART I.

PRELIMINARY.

Short title
and citation.

1. This Order may be cited as the Irvine Burgh Order 1925. The Act of 1881 the Act of 1896 the Order of 1911 and this Order may be cited together as the Irvine Burgh Acts 1881 to 1925.

Commence-
ment of
Order.

2. This Order shall (except as otherwise provided in this Order) commence and have effect as on and from the fifteenth day of May one thousand nine hundred and twenty-five which date is hereinafter referred to as “the commencement of this Order.”

3. This Order is divided into Parts as follows :—

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Part I.—Preliminary.

Part II.—Burial Grounds.

Part III.—Common Good.

Part IV.—Miscellaneous.

Division of
Order into
Parts.

PART II.

BURIAL GROUNDS.

4.—(1) All the parishes or parts of parishes within the limits of the burgh shall for the purposes of the Burial Grounds Acts be held to be one united parish and all that is comprehended within such limits shall be excluded from other parishes for such purposes and the Town Council shall be the board of such united parish.

Extending
powers of
Town Coun-
cil under
Burial
Grounds
Acts to
whole
burgh:

(2) As from the commencement of this Order all powers of the parish councils of the parishes of Irvine and Dundonald for the levying of assessments under the Burial Grounds Acts within any parts of the said parishes respectively which are included within the burgh shall cease and determine and so much of section 37 (Provision for debts owing by local authority of parish of Dundonald) of the Act of 1881 as provides that the local authority of the parish of Dundonald may levy or continue to levy assessments within that part of the said parish which by the Act of 1881 was included within the burgh for defraying the expense of the cemetery at Ayr Road constructed by them shall be and is hereby repealed.

5. For the protection of the parish council of the parish of Dundonald (hereinafter in this section referred to as “the Dundonald Parish Council”) the following provisions shall unless otherwise agreed between the Town Council and the Dundonald Parish Council apply and have effect (that is to say) :—

For pro-
tection of
Dundonald
Parish
Council.

(1) The cemetery of the Dundonald Parish Council at Ayr Road shall be available as heretofore for the interment of the bodies of persons who were resident in that part of the burgh which is in the parish of Dundonald until such time as the new burial ground which the Town Council are in course of enclosing and laying out is ready for use (but not later than the

A.D. 1925.

fifteenth day of May one thousand nine hundred and twenty-six) and thereafter the said cemetery at Ayr Road shall continue to be available for those who already have or within such time as aforesaid may obtain lairs therein (whether on payment or otherwise) and for their relatives so far as such lairs are sufficient and except as provided by this subsection the Town Council on behalf of the inhabitants of the said part of the burgh shall have no rights of burial in the said cemetery :

- (2) In consideration of the extinguishment by this Order of the powers of the Dundonald Parish Council for the levying of assessments within any part of the burgh under or for the purposes of the Burial Grounds Acts as read with the Act of 1881 the Town Council shall on the expiry of the period of three months from the passing of the Act confirming this Order pay to the Dundonald Parish Council the sum of four hundred pounds with interest thereon at the rate of five per centum per annum from the expiry of the said period to the date of payment :
- (3) Any difference which may arise between the Town Council and the Dundonald Parish Council under this section shall be referred to an arbiter to be agreed on by the parties or failing such agreement to an arbiter to be appointed by the Sheriff of the County of Ayr on the application of the parties or either of them and the award of the arbiter shall be final and binding.

Agreements
between
Town Council
and
other local
authorities.

6.—(1) The Town Council on the one hand and the parish councils of the parishes of Irvine and Dundonald or either of them or the local authority of any parish or district adjacent to the burgh on the other hand may enter into and carry into effect agreements in relation to the purposes of this Part of this Order or for the use of any cemetery or burial ground belonging to or under the control of the Town Council or of any such parish council or local authority by the inhabitants of any such parish or district or of the burgh as the case may be and any such agreement may provide for the appointment of a joint committee or committees consisting partly of members of the Town Council and partly of members of

the parish council or local authority who are parties to such agreement and the Town Council and such parish council or local authority may delegate to any such joint committee such of their powers under the Burial Grounds Acts as they may think fit. A.D. 1925.
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(2) Any agreement entered into under the provisions of this section shall be deemed to be a purpose of the Burial Grounds Acts.

7. All expenses incurred by the Town Council in carrying into effect the provisions of this Part of this Order shall be deemed to be expenses incurred by the Town Council under the Burial Grounds Acts and the provisions of the Burial Grounds Acts shall extend and apply accordingly to such expenses. Expenses.

PART III.

COMMON GOOD.

8. So much of the Act of 1881 and more particularly sections 26 (Vesting the property of the burgh in Corporation) 85 (Revenue of common good may be applied towards cost of works) and 142 (Contributions may be made from common good towards assessments in existing burgh) thereof as limits the benefit of the common good to the burgh as it existed prior to the commencement of that Act is hereby repealed and from and after the commencement of this Order the common good and all rents profits and interest arising therefrom shall be applied by the Town Council to the same or similar purposes as heretofore but without any limitation to any portion of the burgh. Common good.

PART IV.

MISCELLANEOUS.

9. The sections of the Act of 1881 in the schedule to this Order mentioned in so far as these sections are still in force are hereby repealed to the extent set forth in that schedule. Repeal of certain provisions of Act of 1881.

10. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Town Council out of any funds (not Costs of Order.

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A.D. 1925. being in the nature of capital) rates or revenues belonging to them or under their control or out of moneys to be borrowed for that purpose (which moneys the Town Council are hereby authorised to borrow upon the security of the general improvement rate) and if paid out of borrowed moneys the same shall be repaid out of the said rate within five years from the passing of the Act confirming this Order.

The SCHEDULE referred to in the foregoing Order.

PROVISIONS OF THE ACT OF 1881 REPEALED BY THIS
ORDER.

No. of section.	Marginal note of section.	Extent of repeal.
3	Application of provisions of 25 & 26 Vict. c. 101 to extended burgh -	The whole section.
4	Application of 38 & 39 Vict. c. 49 to extended burgh - - - -	The whole section.
12	Future adjustments of wards - - - -	The whole section.
13	Qualification of electors - - - -	The whole section.
14	Qualification of councillors - - - -	The whole section.
15	Valuation roll - - - - -	The whole section.
16	Register of municipal electors to be formed - - - - -	The whole section.
17	How register to be made up - - - -	The whole section.
18	Registers to be printed annually - -	The whole section.
19	Saving appointment of poll clerks &c.	The whole section.
20	Existing magistrates and councillors to continue till new town council elected - - - - -	The whole section.
21	Number of councillors and magistrates	The words "(to be elected as herein-after mentioned)."
22	Election of councillors - - - - -	The whole section.
23	One third of council to retire each year	From its commencement down to and including the words "Provided also that."
35	Actions by or against Corporation to be brought in name of town clerk -	The whole section.
36	Deeds granted and debts contracted confirmed and secured - - - -	The whole section.
39	Corporation may appoint committees	The whole section.

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No. of section.	Marginal note of section.	Extent of repeal.	A.D. 1925. -
40	Number quorum and constitution of committees - - - - -	The whole section.	
41	Regulation of committees - - - - -	The whole section.	
42	Appointment of sub-committees - - - - -	The whole section.	
43	Officers to continue in office until displaced - - - - -	The whole section.	
46	Magistrates to grant certificates for licences - - - - -	The whole section.	
47	Prosecutions for offences against the Licensing Acts - - - - -	The whole section.	
48	Provision as to subsisting licences - - - - -	The whole section.	
54	Application of portions of 25 & 26 Vict. c. 101 - - - - -	The whole section.	
65	Rules and fees for procedure in dean of guild court - - - - -	The whole section.	
66	Assessor of extended burgh - - - - -	The whole section.	
68	Councillors to be trustees under 36 & 37 Vict. c. cxxiv. - - - - -	The whole section.	
144	Assessment of rates - - - - -	The whole section.	
145	Rates may be amended - - - - -	The whole section.	
146	Recovery of rates - - - - -	The whole section.	
147	Sales - - - - -	The whole section.	
148	Collector to account for surplus proceeds of sales - - - - -	The whole section.	
149	Appeal by owner of goods &c. against oppressive proceedings under warrant - - - - -	The whole section.	
150	Books of rates to be evidence - - - - -	The whole section.	
167	Power to substitute Corporation mortgages for mortgages of certain local authorities - - - - -	The whole section.	
176	Accounts of Corporation to be open to inspection - - - - -	The whole section.	
177	Auditor to be appointed - - - - -	The whole section.	
178	Auditor to audit accounts and to report - - - - -	The whole section.	
179	Annual account made up - - - - -	The whole section.	

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